

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF POGORELOVA AND OTHERS v. RUSSIA

(Applications nos. 44147/21 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

28 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Pogorelova and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 7 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 28 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	44147/21 30/08/2021	**Yuliya Aleksandrovna POGORELOVA** 1994	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Tambov 31/01/2021	article 20.2 § 6.1 of CAO	detention for 6 days	Tambov Regional Court 01/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 1:20 p.m. on 31/01/2021 and 4:40 p.m. on 01/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	44501/21 11/08/2021	**Andrey Aleksandrovich RUMYANTSEV** 1994	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 12 days	Moscow City Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 02/02/2021 for compiling administrative offence record and detention at the police station between 11:20 p.m. on 02/02/2021 and 7:00 p.m. on 03/03/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	44514/21 17/08/2021	**Aleksandr Alekseyevich PUSHIN** 1996	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 05/02/2021 (received by the applicant on 02/06/2021)	Art. 5 (1) - unlawful deprivation of liberty -escorting to the police station on 02/02/2021 for compiling administrative offence record and detention at the police station between 10:30 p.m. on 02/02/2021 and 4:30 p.m. on 03/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
4.	44580/21 27/08/2021	**Alisher Khakimbekovich BEKNAZAROV** 1985	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty -escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 3:30 p.m. on 31/01/2021 and 12:35 p.m. on 02/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	44794/21 27/08/2021	**Lev Borisovich NIKOLSKIY** 1998	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 11.30 p.m. on 02/02/2021 and 9:50 a.m. om 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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6.	44807/21 27/08/2021	**Veniamin Sergeyevich ORLYANSKIY** 1981	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 11.30 p.m. on 02/02/2021 and 9:15 a.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
7.	44883/21 25/07/2021	**Pavel Grigoryevich YAKUSHIN** 1995	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 6 days	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 2:00 p.m. on 31/01/2021 and the morning of 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
8.	44892/21 12/08/2021	**Kirill Vladimirovich ALESHIN** 1994	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 12 days	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 1:15 p.m. on 31/01/2021 and 2:30 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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9.	44906/21 12/08/2021	**Darya Andreyevna ZIMINA** 1996	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 15 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 02/02/2021 for compiling administrative offence record and detention at the police station between 11:05 p.m. on 02/02/2021 and 7:00 p.m. on 03/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
10.	44910/21 12/08/2021	**Nikita Sergeyevich KARPENKO** 1995	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 11.00 p.m. on 02/02/2021 and 5:00 p.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
11.	44979/21 30/08/2021	**Dmitriy Gennadyevich NAUMOV** 1987	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 11.00 p.m. on 02/02/2021 and 9:00 a.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
12.	44988/21 11/08/2021	**Yegor Aleksandrovich IVANOV** 2002	Nurgaleyev Danil Ilnurovich Kazan	Rally "Free Navalnyy" Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 23/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	45020/21 11/08/2021	**Aleksey Leonidovich BRAYNIN** 1973	Nurgaleyev Danil Ilnurovich Kazan	Rally "Free Navalnyy" Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 14/04/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 23/01/2021 for compiling administrative offence record; and detention at the police station between 3:45 p.m. on 23/01/2021 and 2:00 p.m. on 24/01/2021 - detained for more than three hours after the offence record was drawn up, without any justification.	5,000
14.	45024/21 11/08/2021	**Tatyana Yuryevna SOKOLOVSKAYA** 1975	Nurgaleyev Danil Ilnurovich Kazan	Rally "Free Navalnyy" Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 14/04/2021	Art. 5 (1) - unlawful deprivation of liberty -escorting to the police station on 23/01/2021 for compiling administrative offence record and detention at the police station between 3:45 p.m. and 9:21 p.m. on 23/01/2021 - detained for more than three hours after the offence record was drawn up, without any justification	4,000
15.	45194/21 27/08/2021	**Ivan Alekseyevich LAGASHIN** 1991	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/03/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 0:26 and 9:25 a.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
16.	45200/21 27/08/2021	**Alena Aleksandrovna PAVLOVA** 2001	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 11:47 p.m. on 02/02/2021 and noon on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
17.	46399/21 07/08/2021	**Kirilla Igorevna LABINTATLO** 1993	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 02/02/2021 for compiling administrative offence record and detention at the police station between 11:30 p.m. on 02/02/2021 and 7:00 p.m. on 03/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

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18.	46690/21 07/08/2021	**Dmitriy Borisovich RUMSHINSKIY** 1970	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 8 days	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful deprivation of liberty -escorting to the and detention at the police station between 2:48 p.m. on 31/01/2021 and 12:45 p.m. on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
19.	47031/21 07/09/2021	**Lyudmila Ruslanovna PCHELKINA** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 1:50 p.m. on 31/01/2021 and 7:50 p.m. on 01/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	47139/21 02/09/2021	**Aleksey Andreyevich GUNYASHOV** 1992	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St. Petersburg 31/01/2021	article 20.2 § 6.1 of CAO	detention for 7 days	St Petersburg City Court 02/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 1:50 p.m. on 31/01/2021 and 3:10 p.m. on 01/02/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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21.	47152/21 07/09/2021	**Viktor Vasilyevich TIM** 1997	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Tula 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 14,000	Tula Regional Court 29/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 12:20 p.m. and 5:20 p.m. on 31/01/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	26850/22 05/05/2022	**Sabina Umirgaliyevna ZHOLTAYEVA** 2002	Kabirov Rushan Rafisovich Kazan	Anti-war rally Kazan 27/02/2022	article 20.2 § 8 of CAO	detention for 3 days	Supreme Court of the Tatarstan Republic 02/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 5:31 p.m. on 27/02/2022 and 28/02/2022, when the applicant was taken to court for a hearing of her case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
23.	29705/22 12/05/2022	**Zhanna Andreyevna OSIPOVA** 1999	Ibragimov Rushan Zubairovich Astrakhan	Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/12/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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24.	37042/22 15/07/2022	**Aleksandr Vasilyevich MILEV** 1956	Mangileva Vera Borisovna Yekaterinburg	Anti-war rally Yekaterinburg 24/02/2022	article 20.2 § 2 of CAO	detention for 9 days	Sverdlovsk Regional Court 02/03/2022 (received by the applicant on 21/03/2021)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2:30 p.m. on 24/02/2022 and the evening of 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
25.	40717/22 12/08/2022	**Andrey Leonidovich GRINGAUZ** 1977	Kuroptev Aleksey Mikhaylovich Balashikha	Anti-war rally St Petersburg 27/02/2022	article 20.2.2 § 1 of CAO	detention for 9 days	St Petersburg City Court 14/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8:00 p.m. on 27/02/2022 and 5:20 p.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	4,000
26.	40941/22 08/08/2022	**Timur Olegovich ZAVGORODNIY** 1990	Dadayeva Yekaterina Viktorovna St Petersburg	Anti-war rally St Petersburg 02/04/2022	article 20.2 § 6.1 of CAO	detention for 7 days	St Petersburg City Court 08/04/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 3:45 p.m. on 02/04/2022 and 12:30 p.m. on 03/04/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
27.	41278/22 11/08/2022	**Pavel Viktorovich KHOLKIN** 1969	Kapustin Vladimir Yakovlevich Yekaterinburg	Anti-war rally Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 12,000	Sverdlovsk Regional Court 01/06/2022		3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
28.	44809/22 12/09/2022	**Sofya Olegovna LEN** 1998	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Anti-war rally St Petersburg 02/03/2022	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 24/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 7:40 p.m. on 02/03/2022 and evening of 03/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.